

TENTATIVE RULING

Case: **Coursey v. FCA US, LLC et al.**
Case No. CV2025-0894

Hearing Date: **August 20, 2026** Department Fourteen **9:00 a.m.**

Motion for judgment on the pleadings:

Defendant FCA US, LLC's ("defendant") request for judicial notice is **DENIED**. (Evid. Code, §§ 452, subd. (d), 453.) The documents are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

The Court rules on defendant's motion for judgment on the pleadings as follows:

- Defendant's motion as to the fourth cause of action for breach of the implied warranty of merchantability on the ground that this cause of action is time-barred by the one-year warranty duration found in Civil Code section 1791.1(c) is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) The Court finds that defendant provides insufficient legal authority that a plaintiff must identify a defect arising within one year of sale and plead precisely when the defect manifested to state a cause of action for breach of the implied warranty of merchantability. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1303-1304, 1309 ["[t]he implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale"]; FAC, ¶¶ 55-58.)
- Defendant's motion as to the sixth cause of action for fraudulent inducement – concealment on the ground that plaintiff David Coursey's ("plaintiff") complaint does not state facts sufficient to constitute a cause of action is **DENIED**. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) The Court finds that the complaint states facts sufficient to constitute this cause of action. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40-41 [stating the elements for fraudulent concealment and when a duty to disclose a material fact arises]; *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384-1385 ["[h]ow does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?"]; *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844; *Lovejoy v. AT&T Corp.* (2001) 92 Cal.App.4th 85, 96; *OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 859; FAC, ¶¶ 7-8, 19, 21-24, 26, 64-70.) The Court further finds that the economic loss rule does not bar a claim for fraudulent inducement that is independent of a defendant's alleged breach of contract. (See *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) Plaintiff's first amended complaint alleges conduct that occurred prior to the parties entering into a contractual relationship. (See *Dhital, supra*, 84 Cal.App.5th at pp. 840-841, 843 [the economic loss rule does not apply to concealment-based claims for fraudulent inducement because "the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm"]; FAC, ¶¶ 66-70.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to compel initial disclosures

Plaintiff's motion to compel initial disclosures is **DENIED AS MOOT**. (Code Civ. Proc., § 871.26.) After the parties executed a revised stipulation and protective order, defendant served its supplemental confidential document production on June 19, 2026. (Tremonti Decl., ¶ 3.) Plaintiff has not shown that, following this supplemental production, defendant's initial disclosure remains deficient. (See Code Civ. Proc., § 1005, subd. (b) [reply due five court days before the hearing].)

Plaintiff's request for sanctions is **DENIED**. (Code Civ. Proc., § 871.26, subd. (j).) To the extent that defendant did not comply with Code of Civil Procedure section 871.26(b), defendant has shown good cause to not impose sanctions. (Tremonti Decl., ¶¶ 2-8.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Jones v. Davis Food Cooperative, Inc.**
 Case No. CV2022-0779

Hearing Date: **August 20, 2026** **Department Thirteen** **9:00 a.m.**

Parties are **DIRECTED TO APPEAR** for a hearing on plaintiff Marian D. Jones' unopposed motion for preliminary approval of class action and PAGA action settlement. (Cal. Rules of Court, rule 3.769(c), (d).)